ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	9th Commission Meeting
DATE:	12th January 2021
TIME:	02:00 PM
VENUE:	Google Meet

#	AGENDA	DECISIONS
1	Review DoI's staff engagement and way forward - DoI	The DoI presented all the challenges posed by the COVID-19 pandemic in undertaking investigative functions. The analysis and recommendations on every investigative processes were presented based on its practicality to be working in the new normal, particularly during and post lock down period. In view of various restrictions, the Department submitted alternate staff engagement proposals as an interim measure. *The detailed proposal is in the power point presentation attached.* The Commission commended the Department for the effort and in general appreciated the strategic way forward proposed by the Department. The proposal not only considered undertaking feasible works related to the Department but also proposed for rendering support to other Departments/Divisions related to DA analysis, integrity vetting system development, data analysis, ATRs, among others, as deemed appropriate. Further, the Commission also appreciated the Department's initiative to nurture the culture of learning through self-instructed learnings on bit-coin/crytocurreny and directed to promote participation in the 'Innovation Dumra Initiative' of the ACC. Directed DoI to apprise the Commission on any policy interventions and support required to implement the proposed plans. To ensure meaningful engagement of the staff, during and post lock down, the DoI was directed to prepare a detailed plan of actions to take up feasible works, at the individual as well as departmental levels.
2	Request to participate in the nomination of films to the National Film Awards as an Observer	The Commission recalled the established internal understanding on the participation to such forum or committees of external stakeholders from the perspective of preventing undesirable allegations in case of any lapses or avoiding potential conflicts of interests if the issue comes to the ACC. However, if the agencies allow the ACC to scrutinize the processes including criteria and recommend changes in keeping with the anti-corruption principles and policies, it was noted that this is a good opportunity to prevent corrupt practices and make systemic corrections at the initial steps. Hence, the Commission decided to allow participation as an observer on the condition that the Film Council allows the ACC to also review and comment on strengthening the criteria and processes/procedures, wherever necessary. Based on this, official/s from relevant department/division will be nominated to participate.

(Com Ak on COVID Duty)
Commissioner

Commissioner

Chairperson

DoI 's Interim plan on staff engagement

Presentation to the Commission
12th January, 2021

Presenter: Jigme Choden
CIPO, Branch – V, DoI

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SYNOPSIS

- Background
- Issues & recommendation
- Interim plan on staff engagement
- Strategic direction

BACKGROUND

- Deliberations within Department *(Teams within branches & management team – virtual meetings):*
  - *Performance*
  - *Challenges*
  - *Way-forward on meaningful engagement/ productive contribution*
- Segregated activities into two broad categories:
  - *Feasible without/with some intervention*
  - *Not Feasible*
- Staff Engagement - Interim Plan
  - ***Objective:*** *To remain meaningfully engaged & be productive (WIN-WIN)*
  - ***Context:*** *Lock down & new normal work environment with restrictions still in place*

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FEASIBLE INVESTIGATION PROCESSES

Sl. No.	ACTIVITY /PROCESS	REMARKS/RECOMMENDATIONS
1.	Case assignment	▪ Via virtual platforms like Gsuite, CIMS, mobile apps, etc. ▪ Use of digital signature.
2.	Review of Complaints and Investigation planning (rudimentary)	CIMS to: ▪ *Access & review complaints;* ▪ *Prepare Investigation plans.* Virtually: ▪ *Meetings;* ▪ *General enquiry on the complaints for additional information.*
3.	Document/Information collection & Review *(Online agency data base and Open Source)*	▪ Available online databases; ▪ Request to focal person; ▪ Open Source.
4.	Legal Services – Obtaining court orders/warrants	Commission to: ▪ *discuss with Judiciary; and* ▪ *make arrangement for use of email or other virtual platforms.*

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FEASIBLE INVESTIGATION PROCESSES

Sl. No.	ACTIVITY /PROCESS	REMARKS/RECOMMENDATIONS
5.	Interview & Interrogation	Virtually: ▪ *Interview planning & preparation;* ▪ *Serving summon orders.*
6.	Finalizing report, probable charges and prosecution referral along with evidences compilation.	▪ Report writing; ▪ Evidence compilation. Photocopying, binding, etc. - Not feasible during lockdowns.
7.	Case related meeting (IRC, CM & PIRM)	▪ Virtually - Google meet, Zoom, etc.
8.	Support to prosecutors	Virtually: ▪ *Case presentation;* ▪ *Sharing of available information/documents*

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NON- FEASIBLE INVESTIGATION PROCESSES

Sl. No.	ACTIVITY /PROCESS	REMARKS/RECOMMENDATIONS
1.	Document/Information collection & Review (*physical documents under the custody of agencies)*	▪ Old and bulky (tender docs, vouchers, etc.); ▪ Risk of delay & tampering; ▪ Difficulty in cross verification with original docs.
2.	Interview & Interrogation	▪ Lengthy sessions; ▪ Cross examination and other immediate verifications; ▪ Inconvenience in presenting documents/evidence to witnesses/suspects; ▪ Detention of suspects/witness subsequent to interview/interrogation; ▪ Risks /Issues: ✓ *Witness tampering/coaching;* ✓ *Recording interview/interrogation proceedings & sharing it;* ✓ *Jabmi appointment & coaching;* ▪ Non-cooperation by interviewees citing various reasons viz. ICT illiteracy, internet connectivity, logistics, etc. ; ▪ Contention and admissibility of the statements transcribed by ACC officials.

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NON- FEASIBLE INVESTIGATION PROCESSES

Sl. No.	ACTIVITY /PROCESS	REMARKS/RECOMMENDATIONS
3.	Statement analysis	▪ Possible only if we are able to interview and interrogate.
4.	Field visits/ physical inspection	▪ Entails physical site visits along with affected parties and independent witnesses.
5.	Search & Seizure	▪ Entails visiting the private premise of suspects or public premises. ▪ Need independent witnesses. ▪ Most often search and seizure is followed by interrogation and arrest/detention of suspects. ▪ Conducting forensic examination of digital devices is also dependent on seizure of digital evidences.
6.	Arrest & Detention	▪ Physical interface with suspects – arrest, body frisking, etc. ▪ Most often arrest and detention is followed by interrogation.

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NON- FEASIBLE INVESTIGATION PROCESSES

Sl. No.	ACTIVITY /PROCESS	REMARKS/RECOMMENDATIONS
7.	Bail & Bond	▪ Need physical interface with suspects/accused/co-accused/surety/witnesses/prosecutors/judiciary staff. ▪ The Commission should discuss with Judiciary and make arrangement for executing bail & bond using virtual platform.
8.	Plea bargain	▪ Need physical interface with suspects/accused/co-accused/surety/witnesses/prosecutors. ▪ The Commission should discuss with OAG & Judiciary to undertake such arrangement using virtual platform.
9.	Support to prosecutors	▪ Challenges in furnishing additional evidence, not available with us. This generally happens subsequent to the discussion between the prosecutors and accused/co-accused or on the order of the respective Courts. ▪ Challenges in Court appearances & site visits along with accused, prosecutors, judicial officials and independent witnesses *(Judicial investigation)*

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GENERAL ISSUES DURING LOCKDOWN

- Internet connectivity;
- Lack of enabling work environment at home (investigators & clients); &
- Interlinked Investigation processes:
  - ✓ *disruption in one process will adversely impact other processes;*
  - ✓ *Compromise the efficiency and effectiveness of our investigation and prosecution*

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RECOMMENDATION

- Temporarily stall new case assignment and investigation; and
- Engage investigators:
  - A. *Non-operation departmental activities;*
  - B. *Support services to other departments/divisions within ACC;*
  - C. *Support services to other agencies dealing with pandemic related service provision.*

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INTERIM PLAN ON STAFF ENGAGEMENT

Sl. No.	ACTIVITY (A)	REMARKS (Reason, Objective , Scope)
1.	Desk review of complaints qualified for investigation/backlog cases	▪ Initial phase of investigation completed
2.	Review & enhancement of internal investigation procedures & forms.	▪ Literature review ▪ Drafting
3.	Developing hand books on critical risk areas / sectors like procurement, land, financial crime, etc..	▪ Red-flags ▪ Various modus operandi ▪ Operation strategy ▪ Must collect/ review documents
4.	Development of skills & leadership courses (viz. excel, mindtools, online courses , etc.).	▪ Trainer/trainees; ▪ Sharing of knowledge/experience.
5.	Review of cases returned by OAG/legal frameworks vis-à-vis investigation process.	▪ Support to Legal division & other investigation teams
6.	Study of past completed cases for self learning & development of relevant references.	▪ Modus operandi ▪ Operation strategy

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INTERIM PLAN ON STAFF ENGAGEMENT

Sl. No.	ACTIVITY (A)	REMARKS (Reason, Objective , Scope)
7.	Development of strategic partnership and collaboration *(Functional relationship building vis-à-vis Department's mandate)*	Stakeholder: ▪ *Identification;* ▪ *Engagement & technical assistance;* ▪ *SOP / MOU drafting* ▪ *Management of parties' requirements*
8.	Development of Intranet management/usage guideline	▪ As a supporting document to the Intranet Policy drafted by B-V.
9.	Review of PIRM reports (post-mortem of cases) and consolidate lessons on: ▪ *What went wrong/could have been better;* ▪ *New strategies/best practices to adopt.*	▪ Learn from mistake; ▪ Adopt best practices.
10.	Development of Rapid Response framework & related SOP.	▪ Literature review; ▪ Stakeholder consultation *(brainstorming exercises);* ▪ Drafting, validation /presentation.

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INTERIM PLAN ON STAFF ENGAGEMENT

Sl. No.	ACTIVITY (B)	REMARKS (Reason, Objective , Scope)
1.	Development of prevention and public education programs & materials	▪ Advocacy content (case studies, general investigation process); ▪ Leaflets, posters, Web/Media uploads.
2.	Desk review of AD and also if feasible DA analysis.	▪ Online AD files shared by ADA; ▪ DA files shared the DA committee.
3.	Review & follow up of ATRs	▪ ATRs shared by CMD; ▪ To enhance efficiency in ATR review.
4.	Review / development of other critical policies / guidelines (ICT, Procurement, Networking, etc.)	▪ Literature review (other agencies, ACC's requirement); ▪ Stakeholder consultation ▪ Drafting, validation, finalization
5.	Support in development of various databases (documentation, Integrity Vetting System (IVS), etc.)	▪ Manual assistance in files sorting/arrangement; ▪ Data punching, sorting, arrangement, drafting of synopsis for IVR, etc.).

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INTERIM PLAN ON STAFF ENGAGEMENT

Sl. No.	ACTIVITY (C)	REMARKS (Reason, Objective , Scope)
1.	Emergency/Crisis management tasks: ▪ Frontline workers *(Southern Border Patrolling, Quarantine facilities, delivery of essential commodities);* ▪ Druk Gyalpo's Relief *Kidu* programs.	▪ Share workload of other Desuups & frontline workers; ▪ Enhance service delivery to citizens.
2.	Deployment in other LEAs & RAs (on need basis): ▪ BNCA ▪ OCP ▪ DoI	▪ Assist in investigation; ▪ Support in monitoring of markets; ▪ Monitoring/investigation of illegal activities.
3.	Volunteer in NGOs/CSOs: ▪ RENEW ▪ NCWC ▪ BTI	▪ Providing services to victims of pandemic; ▪ Critical support services to citizens; ▪ Administering surveys/data collection.

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STRATEGIC DIRECTION

THEMES:

1. People
2. Innovation & Creativity
3. Technology
4. Networking & Collaboration

VISION:

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STRATEGIC DIRECTION : 1) PEOPLE

i. **Mindset**

ii. **Self-learning**

iii. **Training**

iv. **Motivation**

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INTERIM PLAN ON STAFF ENGAGEMENT

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4.	Review / development of other critical policies / guidelines (ICT, Procurement, Networking, etc.)	▪ Literature review (other agencies, ACC's requirement); ▪ Stakeholder consultation ▪ Drafting, validation, finalization
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STRATEGIC DIRECTION : 1) PEOPLE

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STRATEGIC DIRECTION : 2) INNOVATION & CREATIVITY

1. **Policies:**
   - Intel-based
   - High Impact

   } **PROACTIVE**

2. **Processes:**
   - Clear
   - Simplified
   - Efficient
   - Flexible
   - Responsible

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STRATEGIC DIRECTION : 3) TECHNOLOGY

- IT enabled process in general;
- Integrated Digital eco-system environment.

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STRATEGIC DIRECTION : 4) NETWORKING & COLLABORATION

- Key stakeholders
- National & International

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Thank you la!

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